

Court No. - 34

Case :- WRIT - C No. - 30554 of 2019

Petitioner :- O.G. Power System Pvt. Ltd. And Another

Respondent :- Uttar Pradesh Power Corporation Limited
And 2 Others

Counsel for Petitioner :- Veerendra Kumar Shukla

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Sudhir Agarwal,J.

Hon'ble Rajeev Misra,J.

1. Heard Sri Veerendra Kumar Shukla, learned counsel for petitioners, learned Standing Counsel for State and perused the record.

2. This writ petition has been filed under Article 226 of Constitution of India challenging order dated 26.03.2019 passed by Consumer Grievance Redressal Forum, Allahabad as also consequential order dated 12.07.2019, whereby respondent no.2 has issued a letter directing petitioners to pay electricity bill of Rs.2,59,329/-.

3. Dispute relates to electricity bill and petitioners have statutory alternative remedy for raising their grievance before Ombudsman under para 7.10(i) of Electricity Supply Code, 2005 (hereinafter referred to as "Code, 2005") read with UPERC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003 (hereinafter referred to as "Regulations, 2003").

4. In view thereof, this writ petition is dismissed on the ground of alternative remedy.

Order Date :- 23.9.2019

Ashish Pd.